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Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN FRANCISCO

Franciscus Dylan Rosario,

PLAINTIFF,

v.

Subhi Abdelhalim;

CSAA Insurance Exchange;

PHILLIPS, SPALLAS & ANGSTADT LLP;

PRIYA D. NAVARATNASINGHAM;

ALBERTO REYNA;

MICHAEL R. CHAMBERS;

CARBONE, SMITH & KOYAMA;

and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

(Related to Case No.: CGC-21-594102)

PLAINTIFF'S REQUESTS FOR ADMISSION

[Code Civ. Proc., § 2033.010 et seq.]

INSTRUCTIONS

The following Requests for Admission are propounded pursuant to Code Civ. Proc., § 2033.010 et seq. Each request is directed to the specific defendant identified in the heading. Responses are due within 30 days of service. Failure to timely respond shall result in a motion to deem the matters admitted pursuant to Code Civ. Proc., § 2033.280.

HOLD FOR SERVICE: These RFAs are to be served on all defendants immediately upon any defendant filing a responsive pleading.

SET ONE: REQUESTS FOR ADMISSION TO PHILLIPS, SPALLAS & ANGSTADT LLP, PRIYA D. NAVARATNASINGHAM, AND ALBERTO REYNA

REQUEST FOR ADMISSION NO. 1:

Admit that Phillips, Spallas & Angstadt LLP ("PSA") received the defense file in *Rosario v. Abdelhalim*, Case No. CGC-21-594102, from Carbone Smith & Koyama (formerly Chambers) on or about May 4, 2023.

REQUEST FOR ADMISSION NO. 2:

Admit that the defense file received from Carbone Smith & Koyama contained materials that had been served by Plaintiff's counsel during discovery in CGC-21-594102, including materials served in August and September 2022.

REQUEST FOR ADMISSION NO. 3:

Admit that Priya D. Navaratnasingham stated in open court on February 18, 2025, in the matter of *Rosario v. Abdelhalim*, CGC-21-594102, that the 911 call evidence was "news to me."

REQUEST FOR ADMISSION NO. 4:

Admit that Motion in Limine No. 17, signed by Priya D. Navaratnasingham and filed January 17, 2025, stated: "Defendant has no idea where this 911 call log or audio recording came from."

REQUEST FOR ADMISSION NO. 5:

Admit that Alberto Reyna stated at trial on April 16, 2025, in *Rosario v. Abdelhalim*, CGC-21-594102, that the supplemental police report was "not anything that we received as part of the subpoena."

REQUEST FOR ADMISSION NO. 6:

Admit that Alberto Reyna stated at trial on April 16, 2025, that he was "not sure what recording" Plaintiff was referring to regarding the 911 call.

REQUEST FOR ADMISSION NO. 16:

Admit that PSA held the defense file in CGC-21-594102 continuously from May 4, 2023 through the conclusion of trial on April 25, 2025, a period of approximately 23 months.

REQUEST FOR ADMISSION NO. 17:

Admit that Alberto Reyna requested "all documents, records stored in any format" regarding the collision on February 26, 2024.

REQUEST FOR ADMISSION NO. 18:

Admit that CAD log numbers and identifiers were provided to Alberto Reyna on or about September 9, 2024.

REQUEST FOR ADMISSION NO. 19:

Admit that on February 18, 2025, J. Jessup, Esq. testified under oath that the 911 audio recording, body-worn camera footage, and CAD log had been served on defense counsel during discovery in August–September 2022.

REQUEST FOR ADMISSION NO. 20:

Admit that Defendant Navaratnasingham was present in the courtroom on February 18, 2025, when J. Jessup testified that the materials had been served on defense counsel during discovery.

REQUEST FOR ADMISSION NO. 21:

Admit that after the February 18, 2025 hearing, neither Navaratnasingham nor Reyna withdrew, corrected, or amended the representations in MIL Nos. 6 and 17 that the 911 audio and related materials "were not produced in discovery" and were of "unknown provenance."

REQUEST FOR ADMISSION NO. 22:

Admit that on April 16, 2025, the Court excluded the supplemental police report after defense counsel represented it was "not anything that we received as part of the subpoena."

REQUEST FOR ADMISSION NO. 23:

Admit that on April 16, 2025, the Court deferred admission of the 911 call recording after defense counsel stated he was "not sure what recording" Plaintiff was referring to.

REQUEST FOR ADMISSION NO. 24:

Admit that on February 18, 2025, the Court accepted Navaratnasingham's "news to me" representation without conducting a verification inquiry regarding defense-side possession or production history.

REQUEST FOR ADMISSION NO. 25:

Admit that at no point during the February–April 2025 proceedings did PSA, Navaratnasingham, or Reyna request or agree to a continuance to allow verification of the production history.

REQUEST FOR ADMISSION NO. 26:

Admit that the 911 audio recording contains Defendant Abdelhalim's statement, in substance, "I barely hit him with anything."

REQUEST FOR ADMISSION NO. 27:

Admit that Defendant Abdelhalim authenticated the 911 recording at trial on April 17, 2025, by stating: "Yes. That is my voice."

REQUEST FOR ADMISSION NO. 39:

Admit that the defense file received from Carbone Smith & Koyama on May 4, 2023, physically contained the 911 audio recording.

REQUEST FOR ADMISSION NO. 40:

Admit that when Alberto Reyna requested "all documents, records stored in any format" regarding the collision on February 26, 2024, he intended to obtain 911 call recordings, CAD records, and body-worn camera footage relating to the incident.

REQUEST FOR ADMISSION NO. 41:

Admit that the supplemental police report excluded by the Court on April 16, 2025, was derived from the same San Francisco Police Department records that had been produced to defense counsel during discovery in 2022.

REQUEST FOR ADMISSION NO. 42:

Admit that prior to January 17, 2025, Priya D. Navaratnasingham or her staff had reviewed or had access to the defense file in CGC-21-594102 for purposes of preparing motions or trial.

REQUEST FOR ADMISSION NO. 43:

Admit that Motion in Limine No. 6, filed January 17, 2025, stated that recorded materials, including the 911 call audio, "were not produced in discovery."

REQUEST FOR ADMISSION NO. 44:

Admit that Alberto Reyna was present in the courtroom on February 18, 2025, when J. Jessup testified that the 911 audio recording, body-worn camera footage, and CAD log had been served

on defense counsel during discovery in August–September 2022.

REQUEST FOR ADMISSION NO. 45:

Admit that the Court excluded the supplemental police report on April 16, 2025, because defense counsel represented to the Court that it was "not anything that we received as part of the subpoena."

REQUEST FOR ADMISSION NO. 46:

Admit that Alberto Reyna had access to the defense file in CGC-21-594102 at all times during his representation of Defendant Abdelhalim from May 4, 2023 through the conclusion of trial on April 25, 2025.

SET TWO: REQUESTS FOR ADMISSION TO MICHAEL R. CHAMBERS AND CARBONE, SMITH & KOYAMA

REQUEST FOR ADMISSION NO. 7:

Admit that defense counsel in *Rosario v. Abdelhalim*, CGC-21-594102, had possession of the defense file from August 2022 through May 4, 2023.

REQUEST FOR ADMISSION NO. 8:

Admit that during that period, Plaintiff's counsel served discovery materials on defense counsel, including a 911 audio recording and body-worn camera footage.

REQUEST FOR ADMISSION NO. 9:

Admit that the defense file was transferred to Phillips, Spallas & Angstadt LLP on or about May 4, 2023.

REQUEST FOR ADMISSION NO. 10:

Admit that no written inventory or production history log was provided to Phillips, Spallas & Angstadt LLP with the transferred defense file.

REQUEST FOR ADMISSION NO. 28:

Admit that the 911 audio recording was used during the deposition of Defendant Subhi Abdelhalim on September 30, 2022, while Defendant Chambers was defense counsel of record.

REQUEST FOR ADMISSION NO. 29:

Admit that when transferring the defense file to PSA on or about May 4, 2023, neither Chambers nor Carbone Smith & Koyama provided a written transmittal letter, index, or inventory identifying

the discovery materials produced by Plaintiff's counsel.

REQUEST FOR ADMISSION NO. 30:

Admit that reasonable professional standards require transferring counsel to inform successor counsel of the discovery production history in a litigated matter.

REQUEST FOR ADMISSION NO. 47:

Admit that the 911 audio recording was physically contained in the defense file transferred to Phillips, Spallas & Angstadt LLP on or about May 4, 2023.

REQUEST FOR ADMISSION NO. 48:

Admit that when transferring the defense file to PSA on or about May 4, 2023, neither Chambers nor Carbone Smith & Koyama informed PSA that the 911 audio recording and body-worn camera footage had been produced by Plaintiff's counsel during discovery in CGC-21-594102.

SET THREE: REQUESTS FOR ADMISSION TO CSAA INSURANCE EXCHANGE

REQUEST FOR ADMISSION NO. 11:

Admit that CSAA Insurance Exchange funded the defense of *Rosario v. Abdelhalim*, CGC-21-594102, through retained defense counsel.

REQUEST FOR ADMISSION NO. 12:

Admit that CSAA Insurance Exchange directed or controlled aspects of the defense strategy in CGC-21-594102.

REQUEST FOR ADMISSION NO. 13:

Admit that CSAA Insurance Exchange issued a denial letter dated February 25, 2021, stating that its investigation was "concluded."

REQUEST FOR ADMISSION NO. 31:

Admit that CSAA Insurance Exchange received periodic status reports from retained defense counsel in CGC-21-594102 between May 2023 and April 2025.

REQUEST FOR ADMISSION NO. 32:

Admit that CSAA Insurance Exchange reviewed, approved, or was informed of the substance of Motions in Limine Nos. 6 and 17 before they were filed on January 17, 2025.

REQUEST FOR ADMISSION NO. 33:

Admit that CSAA Insurance Exchange was aware, prior to January 17, 2025, that the 911 audio recording and body-worn camera footage had been produced to defense counsel during discovery in CGC-21-594102.

REQUEST FOR ADMISSION NO. 34:

Admit that CSAA Insurance Exchange did not, at any time between January 17, 2025 and April 25, 2025, instruct defense counsel to withdraw or correct the representations in MIL Nos. 6 and 17.

REQUEST FOR ADMISSION NO. 49:

Admit that CSAA Insurance Exchange had the authority to instruct retained defense counsel to withdraw or correct the representations in Motions in Limine Nos. 6 and 17 at any time after January 17, 2025.

REQUEST FOR ADMISSION NO. 50:

Admit that Motions in Limine Nos. 6 and 17 were filed on behalf of CSAA Insurance Exchange's insured, Subhi Abdelhalim, and for CSAA's benefit as the insurer funding the defense.

SET FOUR: REQUESTS FOR ADMISSION TO SUBHI ABDELHALIM

REQUEST FOR ADMISSION NO. 14:

Admit that the voice on the 911 recording played at trial on April 17, 2025, in *Rosario v. Abdelhalim*, CGC-21-594102, is your voice, and that you stated at trial: "Yes. That is my voice."

REQUEST FOR ADMISSION NO. 15:

Admit that you are the beneficiary of the judgment entered April 25, 2025, in *Rosario v. Abdelhalim*, CGC-21-594102.

REQUEST FOR ADMISSION NO. 35:

Admit that you testified at trial that "no contact" occurred between your vehicle and Plaintiff.

REQUEST FOR ADMISSION NO. 36:

Admit that the statement "I barely hit him with anything" is inconsistent with the position that "no contact" occurred.

REQUEST FOR ADMISSION NO. 37:

Admit that the jury returned a 9–3 defense verdict on April 25, 2025.

REQUEST FOR ADMISSION NO. 38:

Admit that you authorized CSAA Insurance Exchange and defense counsel to represent you in CGC-21-594102 and that representations made by defense counsel were made on your behalf.

REQUEST FOR ADMISSION NO. 51:

Admit that at the time you authenticated the 911 recording at trial on April 17, 2025, by stating "Yes. That is my voice," you knew the recording contained your statement "I barely hit him with anything."

Respectfully submitted,

Dated: March 3, 2026

FRANCISCUS DYLAN ROSARIO
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